

Datatilsynet Issues Order in Chromebook Case

Date: 30-01-2024

Decision

Public Authorities

Order

Reported Breach of Personal Data Security

Children

Data Processor

Risk Assessment and Impact Analysis

Fundamental Principles

Legal Basis for Processing

In the case concerning the use of Google Workspace in public schools, Datatilsynet assesses that there is no legal basis for the transfer of personal data to Google for all the purposes for which data is currently being transferred. Therefore, Datatilsynet is now issuing an order to the municipalities to bring the processing into compliance with the rules and indicates various ways this can be achieved.

Journal Number: 2023-431-0001

Summary

Since the summer, Datatilsynet has reviewed the extensive material that KL has submitted on behalf of 53 municipalities regarding the use of Google Workspace in schools, and based on this, has made a decision that is being published today.

The material has now provided a detailed description of the central aspects of the schools' use of the service and the provider's use of data. This was an initial prerequisite for the municipalities to begin processing the information in Google Workspace, and the relevant analyses should therefore have been in place before the tools were put into use. This lack of clarification and the incomplete analyses have been assessed and sanctioned in Datatilsynet's previous decisions against the 53 municipalities. The municipalities state in the now submitted material that there is a transfer of personal data, which Google uses for its own purposes. Datatilsynet has therefore assessed the legality of these transfers and made a decision regarding this part of the case, as clarifying this is a prerequisite for being able to process the information at all. At the same time, this clarification sets the framework for a solution where personal data about school children can be processed in the future.

"Before using a tool, as a data controller, one must gain an overview of how personal data is processed within it, and one must be able to document it. This requirement applies to all organizations. However, when it comes to public authorities—where we as citizens cannot opt-out of our information being processed—Datatilsynet has a special expectation that the necessary analyses are both conducted and documented," says Allan Frank, IT security specialist and lawyer at Datatilsynet, and continues:

"Most IT standard products today have a very complex contractual basis, which not only contains many possibilities for variations in the processing of personal data but also has a relatively high frequency of changes. This makes it more difficult than necessary for data controllers in businesses and authorities to comply with GDPR, as it is easy to lose track of what happens with the data. Therefore, we at Datatilsynet encourage that contracts be made more transparent—not just in relation to the processing structure but also in relation to the consequences when conditions surrounding the delivery change."

Order for Legalization of Transfers

The conclusion in Datatilsynet's decision is that there is a legal basis for transferring students' information for the purpose of delivering services, improving the security and reliability of the services, communicating with, among others, the municipalities, and complying with legal obligations. However, it is also assessed that the Public School Act does not sufficiently clearly authorize the municipalities to transfer students' information for the maintenance and improvement of the Google Workspace for Education service, ChromeOS, and the Chrome browser, or for measuring performance and developing new features and services in ChromeOS and the Chrome browser. Therefore, Datatilsynet issues an order to the municipalities to bring the processing into compliance with the rules by ensuring that there is a legal basis for all the processing that occurs. This can, for

example, be achieved by:

- The municipalities no longer transferring personal data to Google for these purposes. This will likely require Google to develop a technical means to cut off the relevant data streams.
- Google itself refraining from processing the information for these purposes.
- The Parliament providing a sufficiently clear legal basis for transfers for these purposes.

The municipalities must comply with the order by August 1, 2024, but must indicate by March 1 at the latest how they intend to comply with it.

"IT services today often function in such a way that the transfer of personal data is built into the product, and that the use of the information is often a prerequisite for obtaining the full benefit of the products' functionality. However, this does not always happen with sufficient focus on the protection of the citizens whose information is being used. But neither the functionality of the solutions one wishes to use, the supplier's market position, the standardized structure, nor the mere use of a standard product can justify non-compliance with the data protection rules that have been politically decided upon in Europe," says Allan Frank.

What Parts of the Decision Remain?

Based on the municipalities' feedback on March 1, 2024, Datatilsynet will inform the municipalities of what additional specific matters remain—beyond the

****Changes that have already occurred and are described in the submitted material – must be addressed by the compliance deadline of August 1, 2024. This partial decision depends on how the municipalities will comply with the order regarding the processing basis for the mentioned disclosures, and therefore it is a step-by-step process.****

****Decision****

The Data Protection Agency hereby returns to the case, where the agency on July 14, 2022, notified Helsingør Municipality of a prohibition against processing personal data using Google Chromebooks and Workspace for Education. The Data Protection Agency upheld this prohibition in a decision dated August 18, 2022.

Based on a subsequent dialogue with Helsingør Municipality, where the municipality identified a number of circumstances in which the use of Google Chromebooks and Workspace for Education had either not been lawful, or where the risk to the registered individuals had not been sufficiently identified and mitigated, the Data Protection Agency suspended the aforementioned prohibition in a decision dated September 8, 2022. The Data Protection Agency simultaneously issued four orders to Helsingør Municipality.

Subsequently, the Data Protection Agency also issued the same four orders to the following 52 other municipalities during the period up to October 24, 2022:

1. Albertslund Municipality
2. Allerød Municipality
3. Ballerup Municipality
4. Dragør Municipality
5. Egedal Municipality
6. Fanø Municipality
7. Favrskov Municipality
8. Faxe Municipality
9. Fredericia Municipality
10. Faaborg-Midtfyn Municipality
11. Glostrup Municipality
12. Greve Municipality
13. Gribskov Municipality
14. Haderslev Municipality
15. Hedensted Municipality
16. Herlev Municipality
17. Hjørring Municipality
18. Holbæk Municipality

19. Horsens Municipality
20. Hvidovre Municipality
21. Hørsholm Municipality
22. Ishøj Municipality
23. Jammerbugt Municipality
24. Langeland Municipality
25. Læsø Municipality
26. Mariagerfjord Municipality
27. Middelfart Municipality
28. Nordfyn Municipality
29. Næstved Municipality
30. Odder Municipality
31. Odense Municipality
32. Odsherred Municipality
33. Randers Municipality
34. Rebild Municipality
35. Samsø Municipality
36. Silkeborg Municipality
37. Slagelse Municipality
38. Solrød Municipality
39. Sorø Municipality
40. Svendborg Municipality
41. Syddjurs Municipality
42. Thisted Municipality
43. Tønder Municipality
44. Tårnby Municipality
45. Vejen Municipality
46. Vejle Municipality
47. Vesthimmerland Municipality
48. Vordingborg Municipality
49. Ærø Municipality
50. Aalborg Municipality
51. Aarhus Municipality
52. Brøndby Municipality

KL subsequently informed the Data Protection Agency on September 12, 2023, that KL and KOMBIT represent Helsingør and the 52 other aforementioned municipalities in the further handling of the cases with the agency.

****1. Decision****

After reviewing the material that KL has submitted on behalf of the 53 municipalities, most recently on June 30, 2023, the Data Protection Agency finds – considering the scope and complexity of the case – grounds to initially make a decision regarding the question of the municipalities' disclosure of personal data to Google Ltd.

In this context, the Data Protection Agency finds that there is no basis to override the municipalities' assessment that, as part of the municipalities' choice of teaching and learning resources in public schools, it is necessary to process and disclose personal data to Google as part of the use of Google Chromebooks and Workspace for Education for (i) the delivery of and (ii) the improvement of the security and reliability of the services in question, etc. ("the original purposes"), cf. Article 6, paragraph 1, letter e of the General Data Protection Regulation, cf. Article 6, paragraph 3, and Section 2, paragraph 1, and Section 18, paragraph 1 of the Public School Act. This includes, among other things, the processing of personal data for the purpose of delivering the services, improving the security and reliability of the services, communicating with, among others, the municipalities, and complying with legal obligations.

However, it is the Data Protection Agency's assessment that the municipalities cannot, within the framework of Section 2, paragraph 1, and Section 18, paragraph 1 of the Public School Act, cf. Article 6, paragraph 1, letter e of the General Data Protection Regulation, process and disclose personal data about school students to Google as part of the use of Google Chromebooks and Workspace for Education for (i) maintaining and improving the Google Workspace for Education service, Chrome OS, and the Chrome browser, (ii) measuring the performance of Chrome OS and the Chrome browser, and (iii) developing new features and services in Chrome OS and the Chrome browser ("the derived purposes").

On this basis, the Data Protection Agency finds grounds to issue orders to the municipalities to bring their processing of personal data in the form of disclosing personal data to Google into compliance with Article 5, paragraph 1, letter a, and Article 6, paragraph 1 of the General Data Protection Regulation, and to be able to demonstrate this, cf. Article 5 of the Regulation.

****Section 2.****

This may occur, for example, by:

- that the municipalities cease to transfer personal data to Google for the purposes in question, which likely requires that Google develops a technical means to cut off the relevant data streams,
- that Google refrains from processing data for these purposes, or
- that a sufficiently clear legal basis for the relevant processing is provided by the Parliament.

The Data Protection Agency initially requests the municipalities to indicate how they intend to comply with the aforementioned order. The Data Protection Agency requests to receive this indication no later than March 1, 2024.

The deadline for compliance with the order otherwise is August 1, 2024. The Data Protection Agency requests to receive a confirmation that the order has been complied with by the same date. The order is issued pursuant to Article 58, Section 2, Letter d of the General Data Protection Regulation.

According to Section 41, Subsection 2, No. 4 of the Data Protection Act, anyone who fails to comply with an order issued by the Data Protection Agency pursuant to Article 58, Section 2, Letter d of the General Data Protection Regulation is subject to a fine or imprisonment for up to 6 months.

Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

****2. Case Presentation****

From September 8 to October 24, 2022, the Data Protection Agency issued the following orders to 53 municipalities regarding their use of Google Chromebooks and Workspace for Education:

"The Data Protection Agency informs [...] Municipality of an order to amend the existing agreement with the data processor in such a way that the conditions mentioned in the Agency's decisions of July 14 and August 18, 2022, in relation to Helsingør Municipality, as well as the material that [...] Municipality submitted on [...] 2022, and which derives from the overall contractual basis with the supplier, are brought into compliance with the General Data Protection Regulation. This includes, at a minimum, a clarification of the places where the 'data processor' acts as an independent data controller, as well as for which purposes, the support situations that the municipality no longer uses, and ambiguities in [contract text] that create uncertainty about the data processor's actions beyond the rule in Article 28, Section 3, Letter a of the General Data Protection Regulation. Furthermore, all intended transfers to unsafe third countries must demonstrably comply with the General Data Protection Regulation.

The Data Protection Agency further informs [...] Municipality of an order to describe the data streams that occur and identify the personal data that is transferred to the supplier, and clarify when this entity acts as an independent or joint data controller. The documentation must encompass the entire technology stack that [...] Municipality uses for processing.

The Data Protection Agency additionally orders [...] Municipality to prepare an updated impact assessment based on all the risks that the municipality has identified during the documentation process, provided that it turns out that there are additional high, non-mitigable risks beyond those

currently requested for Article 36 procedure, the order also includes consultation with the Data Protection Agency under Article 36.

Finally, the Data Protection Agency orders [...] Municipality to present a final time-bound plan for legalizing any processing that could not be legalized by the deadline for the orders, which is set for November 3, 2022. The Data Protection Agency expects to receive documentation for compliance with the orders by the specified date.”

KL informed the Data Protection Agency on September 12, 2023, that KL and KOMBIT represent the aforementioned municipalities in the further processing of the cases at the Agency and therefore would provide a joint response on behalf of all affected municipalities.

KL subsequently submitted documentation for compliance with the Data Protection Agency's orders to the 53 municipalities on November 3, 2022. KL sent supplementary material for this on November 4, 2022.

The Data Protection Agency informed KL and the affected municipalities on November 4, 2022, that the Agency's prohibition of August 18, 2022, was suspended until the processing of the received material was completed. The Data Protection Agency indicated in this context that it expected to complete the processing by the end of 2022.

In the subsequent period, KL became aware that, in KL's opinion, there was a need to elaborate and amend parts of the material so that the municipalities could more effectively comply with the Data Protection Agency's orders. Therefore, KL requested the Data Protection Agency on December 2, 2022, to await this additional material.

The Data Protection Agency granted KL's request and set a deadline of January 23, 2023, to submit this additional material.

KL sent this additional material on January 23, 2023. Following a meeting between the Data Protection Agency and KL, Aarhus Municipality, and KOMBIT regarding the material, KL found that there was a need to elaborate on the submitted material. Therefore, KL requested the Data Protection Agency on March 23, 2023, to await this elaboration.

KL informed on June 16, 2023, prompted by a reminder from the Data Protection Agency of the same date, that KL expected to send the elaborative material by the end of June 2023.

The Data Protection Agency received a comprehensive response with 32 attachments from KL on June 30, 2023, which simultaneously indicated that the document collection constituted the affected municipalities' documentation for compliance with the Data Protection Agency's orders.

KL's response of June 30, 2023, with attachments constitutes, together with the above, a comprehensive case presentation.

KL's response of June 30, 2023, as well as appendices 16 and 26, are attached as appendices to this decision.

3. General Remarks

The Data Protection Agency acknowledges, first and foremost, the significant work that the municipalities, as data controllers, have undertaken to comply with the Data Protection Agency's orders. There is now a comprehensive description of which data is being processed, by whom, and in what role. The municipalities' work has also resulted in changes to the services that the municipalities use and the contractual terms under which these services are provided.

However, the Data Protection Agency emphasizes that this work should have been carried out before Google Chromebooks and Workspace for Education were put into use. The municipalities' processing of personal data prior to this work is therefore, as the Data Protection Agency has previously ruled, in violation of several provisions of the General Data Protection Regulation (GDPR).

Where multiple data controllers use the same systems and perform approximately the same processing of personal data, the Data Protection Agency believes there is significant synergy in conducting joint assessments regarding risk factors, potential impact assessments, and mitigating

measures. Furthermore, the Data Protection Agency encourages that associations and bodies representing categories of data controllers develop codes of conduct in accordance with Article 40 of the GDPR to specify the application of the GDPR.

A code of conduct can provide correct and practical guidance on how to organize oneself in connection with one or more processing activities to comply with data protection rules. This could, for example, involve establishing procedures to be followed for a specific processing activity. A code of conduct would therefore be a useful tool to assist in complying with data protection rules for the authorities that have subscribed to the code.

While adherence to and compliance with a code of conduct makes it easier to comply with data protection rules, it does not exempt individual municipalities from the obligations and tasks that fall upon them as data controllers. This is particularly significant in situations where the data controller chooses to deviate from the assumptions in the common concepts and processing activities, for example, by using a system for other purposes.

3.1. On the Lawful Processing of Personal Data

The principle of legality in administration (the legality principle) implies that a public authority's decisions and administration must be supported by law or another legal basis.

Regarding data protection rules, this principle means that public authorities—besides ensuring that their own task performance is in accordance with data protection rules—must also ensure that the IT solutions that the authorities decide to use to support their task performance fall within the framework of data protection law.

Public authorities must therefore ensure and take measures to prevent them from designing, developing, acquiring, or using solutions that do not comply with data protection rules. This can, among other things, be achieved by authorities setting relevant requirements in their procurement procedures and project models that ensure the acquisition or development of solutions in accordance with data protection rules.

The extent of these requirements may, in the Data Protection Agency's view, vary depending on the nature, scope, and purpose of the processing activity that the solution is intended to support, as well as the risks to citizens that may be associated with the use of the solution. In any case, these requirements must consist of more than just a single requirement for the supplier that the solution must comply with data protection rules. The requirements may, for example, reflect the measures that the authority has assessed are necessary based on its risk assessment or impact assessment to ensure the legality of the solution.

Finally, the Data Protection Agency notes that the functionality of the solutions intended for use or the market position of the chosen supplier cannot justify a failure to comply with data protection rules. A standardized structure of the solutions or the mere use of a standard product cannot, likewise, justify a failure to comply with data protection rules.

4. Justification for the Data Protection Agency's Decision

4.1. Mapping of Data Flows and Role Distribution between Municipalities and Google

4.1.1. Role Distribution

A data protection impact assessment must, according to Article 35, paragraph 7 of the GDPR, at a minimum include, among other things, a systematic description of the planned processing activities and the purposes of the processing.

It is a fundamental prerequisite for assessing and documenting compliance with data protection rules that one is aware of and can describe what information is being processed, for what purpose(s), and in what role.

Based on the Data Protection Agency's order, KL, in collaboration with Google, has mapped out the roles of the municipalities and Google in the municipalities' use of Google Chromebooks and Workspace for Education, as well as which personal data is processed, by whom, and for what purpose(s).

Overall, the municipalities are the data controllers for the processing of personal data in connection with the municipalities' use of Google Chromebooks and Workspace for Education. KL has additionally stated that Google's role across the technology stack is as follows:

Technology Stack
Data Controller
Data Processor
Service Data
Customer Personal Data
Service Data
Customer Personal Data
Chrome OS

Yes

Yes

No

No

Chrome Browser

Yes

Yes

No

No

Chrome EDU Upgrade

Yes

No

No

Yes

Workspace for Education (including Chrome Sync)

Yes

No

No

Yes

KL has thus informed that Google is the data controller for any processing of personal data that occurs as part of the use of Chrome OS and the Chrome browser, and that Google is not a data processor for the municipalities in this context.

Furthermore, KL has stated that Google is the data controller for the processing of Service Data in Chrome EDU Upgrade and Workspace for Education, and that Google's processing of Customer Data in these two products occurs as a data processor for the municipalities.

A description of the processing activities for which Google is the data controller is included in Appendix 26 to KL's response (attached). The mapping also contains a more detailed description of the specific information being processed and the concrete purposes of the processing.

The Data Protection Agency understands that Customer Data generally includes content data, e.g., documents handled in Workspace, etc., while Service Data primarily includes derived diagnostic data about, for example, school students' use of the products.

4.1.2. Agreement Basis

The municipalities' use of Chromebooks and Workspace for Education is governed by two agreements with Google. These are the Google Workspace for Education Terms of Service (dated September 26, 2023) and the Chrome Online Agreement (dated April 7, 2022).

The agreements cover the products Workspace for Education[1] and Chrome EDU Upgrade[2], as indicated in the above overview of the technology stack.

The Google Workspace for Education Terms of Service also refers to the Cloud Data Processing Addendum (dated September 26, 2023), which thus constitutes the data processing agreement regarding the product Workspace for Education.

Additionally, the Chrome Online Agreement refers to the Data Processing Amendment to Chrome Agreements (dated February 16, 2023), which constitutes the data processing agreement for the product Chrome EDU Upgrade.

In both sets of agreements, Customer Data and Customer Personal Data have specific meanings.

Service Data, which is processed as part of the use of Workspace for Education and Chrome EDU Upgrade, is further defined in the Google Cloud Privacy Notice (dated August 21, 2023) and is not covered by the municipalities' agreement with Google, but is processed by Google as the data controller.

The municipalities' use of Chrome OS and the Chrome browser, as detailed further below, is also not governed by agreements between the municipalities and Google.

Instead, the use of Chrome OS is governed according to Google by Google's general terms of service[3] and privacy policy[4]. The terms of service are not entered into with the municipalities, but with the individual end user, who in this case are school students (and their parents).

Similarly, the following is stated in Appendix 26, p. 3 at the bottom:

"Today, Google acts as a data controller when providing ChromeOS and Chrome browser, for both Customer Data and Service Data. As part of providing Chrome services, Google processes personal identifiers relating to devices or end users of Chrome, which are only used for the purposes set forth in the Google Privacy Policy."

On this basis – and based on the division of roles between the municipalities and Google, as informed by KL – the Data Protection Agency assumes that the use of the Chrome browser is also not governed by an agreement between the municipalities and Google, but instead is governed by Google's general terms of service and privacy policy, as is the case for Chrome OS.

4.1.3. Purposes of Processing Personal Data

KL has found it necessary, in connection with its dialogue with Google, to clarify the agreement basis with Google regarding the purposes for which Google processes the information. As part of the response dated June 30, 2023, KL has submitted a draft of a contract amendment that clarifies, among other things, the purposes for which Google may process the information.

For Workspace for Education, Google will thereafter process Customer Data as a data processor for the municipalities to provide the service and support (upon request from the municipalities). Google has further clarified that Customer Data will not be processed for marketing purposes or for the improvement of Google's products and services, including Workspace for Education.

Google has also committed to only process Service Data generated by the use of Workspace for Education, as the data controller, to improve and optimize the performance, reliability, core functionality, availability, data protection, security, and efficiency of the IT infrastructure of (a) Google Workspace for Education and support for it, as well as (b) Google Cloud, Google Cloud Marketplace, and Google Workspace Marketplace services, provided that the municipalities use such services. Google will not process Service Data to improve or optimize other Google products or services.

For Chrome EDU Upgrade, Google will process Customer Personal Data to:

(a) to provide, secure, and monitor the Services and any TSS requested by Customer; (b) to support Customer's and its End Users' secure and compliant use of the Services; (c) as described in this Data Processing Amendment, including Sections 10 (Data Transfers) and 11 (Subprocessors); (d) as described in Section 7 (Confidentiality; Legal Process) of the Agreement, provided that any disclosure by Google or any Subprocessor with its address in the EEA complies with European Data Protection Law; and (e) as further specified via (i) Customer's compliant use of the Services (including the Admin Console and other Services functionality) and any TSS requested by Customer, and (ii) any other written instructions given by Customer and acknowledged by Google as constituting instructions under this Addendum.

KL has additionally stated that Service Data processed as part of the Chrome EDU Upgrade is a subset of the Service Data processed as part of the Chrome browser. Furthermore, KL has stated that Google is the data controller for the processing of all personal data, regardless of whether the information is characterized as Service Data or Customer Personal Data, in connection with the use of Chrome OS and the Chrome browser. The purposes of Google's processing of Service Data in Chrome EDU Upgrade, and all other personal data in Chrome OS and the Chrome browser, are outlined in Google's privacy policy.

In summary, KL has stated that Google processes personal data for which the company is independently the data controller across the technology stack for the following purposes:

Service

Original Purposes

Derived Purposes

Workspace for Education

Provide cloud services requested by municipalities

Provide recommendations for optimizing the use of cloud services

Assist municipalities

Protect municipalities, Google's users, customers, the public, and Google

Comply with legal obligations

Maintain and improve cloud services

Provide and enhance other services requested by municipalities

Chrome OS

Provide Google's services

Enhance the security and reliability of services

Communicate with customers

Provide personalized services (Google Sync)

Comply with legal obligations

Maintain and improve Google's services

Measure performance

Develop new features and services

Chrome browser

Provide Google's services

Enhance the security and reliability of services

Communicate with customers

Provide personalized services (Google Sync)

Comply with legal obligations

Maintain and improve Google's services

Measure performance

Develop new features and services

Finally, KL has further described the aforementioned purposes and how personal data is processed in connection with these purposes. This is detailed in Appendix 26 to KL's response (attached).

4.1.4. The Data Protection Authority's Assessment

After reviewing KL's response, the Data Protection Authority finds that the municipalities have described which personal data is processed in connection with the municipalities' use of Chromebooks Workspace for Education, as well as the roles of the municipalities and Google in the processing of the information. The description encompasses the entire technology stack. The Data Protection Authority then considers the authority's order to describe the data flows that occur and to describe which personal data is disclosed to Google as complied with.

However, the Data Protection Authority notes that the description of the data flows and the contractual basis regulating the municipalities' use of Chromebooks and Workspace for Education is complex. In the authority's view, this in itself entails a risk of non-compliance with data protection regulations. This is because even minor changes in the technology stack or contractual basis can lead to consequential changes that the municipalities may overlook. The Data Protection Authority therefore encourages the

municipalities to engage in further dialogue with Google to simplify, in particular, the contractual basis or to ensure that the municipalities possess or have access to the necessary technical and legal expertise to ensure compliance with data protection regulations.

4.2. Disclosure of Personal Data

4.2.1. Data Protection Regulation

Personal data may be processed based on one of several legal bases found in Article 6, paragraph 1 of the Data Protection Regulation. For public authorities, the processing of personal data will often occur because it is necessary to comply with a legal obligation, cf. Article 6, paragraph 1, letter c, or because the processing is necessary for the performance of a task carried out in the public interest or falls under...

public authority exercise, cf. Article 6, paragraph 1, letter e.

The processing must, in both cases, have a so-called supplementary legal basis, which obliges or authorizes the authority to perform a specific public task. This follows from Article 6, paragraph 3 of the Data Protection Regulation.

4.2.2. Requirements for the supplementary legal basis

Article 6, paragraph 3 of the Data Protection Regulation contains several requirements for the supplementary legal basis, which must therefore meet certain criteria.

Firstly, it is required under Article 6, paragraph 3, first sentence, that the basis for the processing must be evident from EU law or national law.

It is stated in recital 45 that the Data Protection Regulation does not imply that a specific law is required for each individual processing under Article 6, paragraph 1, letter e. It may be sufficient to have one law as the basis for several data processing activities. However, it is required that processing under the provision occurs based on EU law or national law. Furthermore, it follows from recital 41 of the Data Protection Regulation that the relevant legal basis does not necessarily require a law, but that the legal basis should be clear and precise, and the scope of application should be predictable for individuals covered by the scope of the legal basis.

From the Ministry of Justice's report no. 1565/2017, p. 132f., the following is stated regarding Article 6, paragraph 1, letter e of the Regulation:

"It must be assumed in this context that Article 6, paragraph 1, letter e, is directly applicable as a basis for processing, as long as the data controller performs a task in the public interest or falls under public authority exercise, which the data controller has been mandated. The use of Article 6, paragraph 1, letter e, as a basis for processing does not require a national implementing enabling legislation regarding the processing of personal data in connection with the performance of tasks in the public interest or as part of public authority exercise.

The use of Article 6, paragraph 1, letter e, does not necessarily require that the task, which necessitates the processing of personal data, is explicitly mandated by law to the authority. In this context, reference can be made to [the Data Protection Agency's statement in the case with journal no. 2004-54-1394], where the Agency found it natural that the Ministry of Education, as the central authority in the area, solved a task regarding digital registration for and application for admission to educational programs, even though there was no explicit legal basis mandating the ministry with the task. The ministry could therefore use, among other things, § 6, paragraph 1, no. 5, of the Data Protection Act regarding processing that is necessary for the performance of a task in the public interest."

Furthermore, the following is stated in the report on p. 160 regarding Article 6, paragraph 3 of the Regulation:

"It follows from Article 6, paragraph 3, second sentence of the Regulation, specifically concerning processing covered by Article 6, paragraph 1, letter e – i.e., for the performance of a task in the public interest or as part of public authority exercise – that the processing must be 'necessary for the performance of a task in the public interest or as part of public authority exercise.' It must also be sufficient for the fulfillment of this necessity requirement that it can be inferred from the relevant national law with its preparatory works, provided that the processing is actually 'necessary.'

In Article 6, paragraph 3, last clause, there is an additional requirement for the legislation that adapts

the application of the Data Protection Regulation. There is a requirement that the national law of the member states must serve a purpose in the public interest and be proportionate to the legitimate aim pursued.

Thus, the Data Protection Regulation establishes a requirement for proportionality and consideration of the public interest in connection with national law and EU law that adapts the application of the Data Protection Regulation."

In connection with the Ministry of Justice's national evaluation of data protection rules in April 2021, the Data Protection Agency stated, among other things, the following in a contribution to the ministry:

"The provisions of Article 6, paragraphs 2 and 3 of the Regulation imply, firstly, that the processing – in order to be able to take place under 6, paragraph 1, letter e – must be evident from EU law or the national law of the member states. This means that the application of Article 6, paragraph 1, letter e, requires that the processing is provided for in EU law or national law, but not necessarily that there is a national implementing enabling legislation regarding the processing itself. [...]

In other and far most cases, however, specific legislation will not contain specific requirements for the processing of personal data or otherwise prescribe specifically whether and which personal data should be processed. However, processing of personal data will typically be a prerequisite for the authority to fulfill the tasks prescribed by the legislation. This could, for example, be an authority's assessment of a citizen's right to social benefits under social legislation or legislation concerning the authority's tasks in the area of children and schools. When processing under Article 6, paragraph 1, letter e of the Regulation can be considered necessary, it must in these cases be assessed against the tasks and obligations that the authority has under the legislation regulating its activities. The same applies to the necessity requirement that follows from Article 5, paragraph 1, letter c of the Regulation. In this context, it is important to emphasize that the data protection rules are not intended to stand in." the way for or complicate public authorities' execution of their tasks. The data protection regulations, including the requirement of necessity, do not imply that public authorities must, at all costs, organize their task execution in such a way that the least possible personal data is processed, if this would prevent the authority from fulfilling its tasks in the manner intended by legislation.

The data protection legal requirement of necessity is, on the other hand, flexible and gives the data controller – in this context, public authorities – the opportunity to assess what is relevant and appropriate in each individual case, i.e., necessary, for the authority to carry out its tasks in the manner intended by legislation. In this connection, it is also important to keep in mind that the authority, which is assumed by law to perform a task, inherently has the best conditions to assess what is appropriate and relevant to solve the task, as it is precisely that authority which has the most knowledge of how any sector-specific legislation is implemented in practice.

Thus, it will fall within the framework of Article 6, paragraph 1, letter e of the Data Protection Regulation if the authority can point to a legal basis as the reason for the processing, and if the processing is not – from a general perspective – unnecessarily intrusive for the data subject, for example, because the processing is solely a practical way for the authority to fulfill the purpose without taking the data subject into account.

In other words, public authorities have quite broad parameters for assessing which processing of information is necessary to carry out the authority's tasks according to legislation.

Finally, the Court of Justice of the European Union states the following in its judgment of February 24, 2022, in case C-175/20[8]:

"In this regard, it should be noted, however, that the legislation underlying the processing, in order to meet the requirement of proportionality expressed in Article 5, paragraph 1, letter c), must establish clear and precise rules governing the scope and application of the measure in question, and which set out minimum requirements, so that the individuals whose personal data are affected have sufficient guarantees to effectively protect that data against the risk of misuse. This legislation must be legally binding in national law and, in particular, specify under what circumstances and on what conditions a measure for the processing of such data may be adopted, ensuring that the intervention is limited to what is strictly necessary."

The requirement for clarity of the relevant legal basis thus generally depends on how intrusive the processing of personal data involved in the solution will be for the citizen. If it concerns a completely harmless processing, the requirements will be less than if it concerns an intrusive processing, where greater demands are placed on the clarity of the legal basis.

4.2.3. The Folkeskole Act

The municipal authorities' responsibilities in the school area are outlined in the Folkeskole Act[9]. From Section 1, paragraph 1, and Section 2, paragraph 1 of the Act, the following is stated:

"§ 1. The folkeskole shall, in cooperation with the parents, provide students with knowledge and skills that: prepare them for further education and give them a desire to learn more, make them familiar with Danish culture and history, give them an understanding of other countries and cultures, contribute to their understanding of humanity's interaction with nature, and promote the individual student's versatile development. [...]"

"§ 2. The municipal council is responsible for the folkeskole, cf. however, § 20, paragraph 3, § 44, and § 45, paragraph 2, second sentence. The municipal council is responsible for ensuring that all children in the municipality are guaranteed the right to free education in the folkeskole."

Furthermore, the following is stated in Section 5, paragraphs 1 and 2 of the Act:

"§ 5. The content of the teaching is chosen and organized so that it gives students the opportunity for academic immersion, overview, and experience of connections. The teaching must give students the opportunity to acquire the knowledge and working methods of the individual subjects. In interaction with this, students must have the opportunity to apply and expand the acquired knowledge and skills through teaching in cross-cutting subjects and issues.

Paragraph 2. Teaching in grades 1-9 is provided within 3 subject blocks and includes for all students: [...]"

From the preparatory works for the provision (Folketingstidende 1992-93, Supplement A, bill of April 22, 1993, p. 8939), the following is stated:

"For all subjects in the three groups, it applies that one must be aware that IT must be integrated, as described in the teaching guidelines for the mandatory subject IT of the applicable law and in the supplements to the subject curricula that have been issued and have been issued by the ministry in recent years. Integration of IT allows for the development of the subjects' themes, concepts, and methods, and examples of this will be included in upcoming teaching guidelines."

In this context, the following is stated in the preparatory works for Section 7 of the Act (a. st., p. 8943), which establishes mandatory subjects to be included in the teaching in primary school:

"IT is proposed to be abolished as a mandatory subject, as it is assumed that the content will be integrated into the mandatory subjects in the younger grades. This way, all students will gain a fundamental understanding of the concepts and methods of information technology and knowledge of where computers can advantageously be used in the subjects. This knowledge should form the basis for the general integration of IT in the subjects, cf. also the remarks on § 5 of the bill."

Furthermore, it is stated in Section 18, paragraph 1 of the Folkeskole Act, which among other things concerns the choice of teaching materials:

"Organization of Teaching, including the choice of teaching and working methods, methods, teaching materials, and selection of content, must in all subjects comply with the purpose of the folkeskole, goals for subjects, and topics, and be varied so that it corresponds to the individual student's needs and prerequisites."

Furthermore, § 19, subsection 1 of the law states the following: "The necessary teaching materials must be provided free of charge to the students. However, this does not apply to instruments and equipment used for teaching in leisure time according to § 3, subsection 6, and which are taken home by the students for their own use."

From the preparatory works for the provision (Folketingstidende 1992-93, supplement A, bill of April 22, 1993, p. 8956), the following is stated: "As a result of the fact that IT has transitioned from being a

mandatory subject to being an integrated part of the content of subjects, it is assumed that the ongoing development of equipping schools with information technology teaching materials and providing teachers with the necessary educational background will continue, so that the intentions of fully integrating IT can be realized within the coming years."

The introduction of IT as a mandatory subject occurred by law no. 435 of June 13, 1990. In support of the introduction of the subject as a mandatory topic, the Ministry of Education – as anticipated in the preparatory works for the provision (Folketingstidende 1989-90, supplement A, bill of March 14, 1990, p. 5194) – developed a guideline curriculum and teaching guidance. The curriculum and teaching guidance state the following about the purpose of the IT subject:

"Purpose of the mandatory subject IT

- Students should be familiar with using hardware and software.
- Students should gain knowledge of how the computer is used in communication and problem-solving processes.
- Students should gain knowledge of how the use of computers affects communication and problem-solving processes.

Comments on the purpose

Humans have always communicated with each other using sounds, images, writing, etc. In many of these communication processes, they have used tools, such as pencils, brushes, typewriters, and telephones. Such tools will always influence how people communicate with each other. The same applies when we solve problems. The use of IT has become so widespread that it can rightly be claimed that it is a tool that everyone will come to use. Many other tools are primarily aimed at physical processes. This is not the case with IT, as this tool predominantly supports processes of an intellectual nature.

It is therefore of utmost importance that people are able to appropriately incorporate IT into communication and problem-solving processes. At the same time, this will be a significant prerequisite for being able to navigate in a society where democratic decision-making processes and social interactions are a matter of course. Thus, these are prerequisites that all citizens must possess, and which must therefore be part of general education alongside, for example, the ability to read, write, and calculate.

The purpose of teaching IT encompasses 3 aspects:

- The operational aspect, which concerns general operational skills as well as knowledge of the overarching principles of how computers work. The teaching should result in students becoming familiar with working on a computer, and through this, they should develop appropriate mental models of how hardware and software function and interact. This is specified in the teaching sequences.
- The conceptual aspect, which concerns knowledge of the concepts and methods used when the computer is employed for communication and problem-solving. The teaching should result in students particularly becoming aware of the common features in the form of concepts and methods that exist in almost all IT applications. Such awareness will help create structure in the students' IT knowledge.
- The significance aspect, which concerns knowledge of the significance of the computer in the process when it is used in connection with human communication or problem-solving. The teaching should result in students being aware, in their later use of the computer, of whether the use of IT in these processes changes conditions and results.

It is important to emphasize that the main goal of the teaching is to ensure that students have options for action in application situations. Such options for action are only available to students if the use of IT is not dominated by technical problems or by the students' lack of knowledge of fundamental IT concepts and methods (cf. the section "Characterization of IT Teaching"). Therefore, the teaching should contribute to students becoming capable of using IT in an appropriate manner.

It should further be emphasized that it is important for students to gain knowledge that the computer, through users' choices of different programs, can be used to solve many diverse tasks. This means that the computer is one of the most flexible tools we have at our disposal, and that we often may be

forced to choose whether and, if so, how we will use the computer. In many areas, starting to use computers will mean significant changes compared to the use of previous technology: it can open up entirely new possibilities, but it can also present new limitations compared to what was previously possible."

4.2.4. The Digitalization Strategy 2011 to 2015

KL has, in its analysis and assessment, referred several times to the joint public digitalization strategy 2011 to 2015, which was

prepared in August 2011 by the then government, the municipalities, and the regions.[10]

The use and development of digital learning tools was a focus area in this strategy, where it is emphasized in several places that the public school system must keep pace with the times. KL has referred to Appendix 3.1.a of the strategy, which states, among other things:

"In connection with the economic injection, there is a need for a discussion with the industry for digital learning tools about how they can be obligated to work towards a development that supports some of the visions described above. Among other things, it can be discussed how to promote the involvement of private actors in translating and adapting tested foreign digital learning tools to Danish conditions for the purpose of sale."

KL has also referred to Appendix 3.4 of the strategy, which states, among other things:

"A prerequisite for the success of the investment in IT is that IT is integrated into the development of new teaching and learning forms, so that traditional teaching is not merely continued with 'power on'. Therefore, through trials and research, there is a need to generally raise the knowledge level about how to most effectively enhance students' learning academically and socially using IT tools, including knowledge about how teachers can organize and support teaching using digital learning tools and digitally based learning processes."

Finally, KL has referred to the agreement between the government and KL regarding the municipalities' finances for 2012. This states, among other things:

"Strengthened use of IT in public schools

Digital learning processes are now part of many public schools, but a more fundamental transformation is needed. Therefore, it is included in the joint public digitalization strategy that in the coming years, there will be a focus on a strengthened use of IT, so that it becomes an integrated part of teaching in public schools.

It should contribute to strengthening students' academic skills and better prepare them for future educational and job opportunities, support a more targeted organization of teaching, and enable better resource utilization in public schools.

The government and KL therefore agree on an ambitious effort, where the government has reserved DKK 500 million from the Welfare Technology Fund to over the coming years:

- Contribute to developing the market for digital learning tools, including stimulating a large supply of quality products.
- Support effective distribution channels that ensure easy and clear access to digital learning tools, including providing access to digital learning objectives.
- Assist in spreading experiences from trial and research projects, including providing limited support to demonstration schools, so that the development of IT-based learning forms focuses on areas and subjects where the effect is greatest.

The government and KL agree that the funds will be allocated according to the principles described in Appendix 2. Any contributions to the purchase of learning tools will be co-financed by the municipalities, at least corresponding to the state share.

To enable the transformation in the area, it is included in the agreement that the municipalities will ensure, by 2014, within the current investment frameworks, that all students have access to the necessary IT infrastructure, including in the form of stable and secure wireless networks with sufficient capacity, secure storage, power supply, etc."

4.2.5. The Data Protection Authority's Assessment

In the opinion of the Data Protection Authority, public authorities, as provided for in the General Data Protection Regulation, its recitals, and the Ministry of Justice's report no. 1565/2017, have a broad

access to process personal data when necessary for the performance of their official duties. The Data Protection Authority acknowledges that the aforementioned "necessity requirement" is flexible and gives public authorities a wide margin to assess what is relevant and appropriate in each case, i.e., necessary for the authority to perform its tasks in the manner intended by the legislation. The question then is to what extent municipalities can extend this flexibility to include the use of teaching and learning tools, which by their structure and delivery model involve municipalities transferring personal data to another independent data controller, the provider of the learning tools – here Google – for the purposes of (i) delivery and (ii) improvement of the learning tools as well as (iii) development of new functions and services.

Initially, the Data Protection Authority notes that KL has stated that the assessment of whether municipalities have the authority to transfer personal data to Google should be conducted in two stages. First, it is assessed whether municipalities have the authority to transfer personal data to Google for the purpose of delivering the service. Next, it is assessed whether municipalities have ensured that Google can legally receive and process the personal data for other purposes, including the development of new functions and services, in accordance with Article 5(1)(a) of the General Data Protection Regulation.

It is the Data Protection Authority's opinion that the assessment of whether municipalities have the authority to transfer personal data to Google should be made in light of all the purposes for which the data will be processed. Therefore, municipalities must assess whether there is authority to transfer personal data for the purpose of delivering the service and for other purposes, including the development of new functions and services. This includes all the purposes that municipalities are aware of at the time of the transfer.

****The information will be processed for.****

The Data Protection Agency specifically refers to the agency's decision regarding Helsingør Municipality dated August 18, 2022. This includes, among other things, the following:

"Thus, the information cannot legally be disclosed to other data controllers for their purposes when it concerns purposes that are not provided for in the Folkeskole Act. This also includes the processing of personal data that may occur through students' use of the equipment and software.

It is the Data Protection Agency's opinion that the processing of personal data that is provided for in the Folkeskole Act's rules on compulsory education, and thus can occur under Article 6, paragraph 1, letter e of the General Data Protection Regulation, does not include the disclosure of information to other independent data controllers, including for purposes such as further development of technology providers' applications, etc. It is the Data Protection Agency's opinion that public authorities' disclosure of personal data to private data controllers generally requires a specific legal basis when it concerns purposes that lie outside the official tasks that the public authority is obligated to perform."

Municipalities cannot first assess whether there is a legal basis for disclosing personal data for certain purposes (provision of the service) and then assume that the other purposes (development of new products, etc.), for which the personal data is also processed, should be assessed as Google's own further processing of the personal data for other purposes under Article 6, paragraph 4, and paragraph 1 of the General Data Protection Regulation.

In this context, the Data Protection Agency places particular emphasis on the fact that these are processes that are determined in the contractual basis and are provided for the execution of the processes, and the situation cannot therefore be equated with the case where a third party, after a disclosure, as an independent data controller subsequently chooses to use personal data for new own purposes.

****KL has generally stated that it is provided for in the Folkeskole Act that IT and digital learning tools must be fully integrated into teaching, and that the joint public digitalization strategy for 2011 to 2015 focuses on working with the industry for digital teaching tools for greater integration of digital learning tools in teaching, including the development of new teaching and learning tools.****

KL has elaborated that it is necessary to use technical data to continuously develop and improve the tools when using digital tools. Municipalities would over time have outdated products if the suppliers did not continuously improve and develop the tools. The development of digital teaching tools has, as

provided for in the Folkeskole Act, the joint public digitalization strategy 2011 to 2015 in the area of public schools, as well as the economic agreement, continuously taken place. According to KL, teaching in public schools will not meet the requirement in the Folkeskole Act for full integration of IT or digital teaching tools in teaching if these teaching tools are not continuously matured through development, updating, and improvement.

Finally, KL has stated that it follows from the joint public digitalization strategy 2011 to 2015 that “the purpose of the digital learning processes is to strengthen students' academic skills and better prepare them for the future.” According to KL, it will not be possible to prepare students for the future with yesterday's digital learning tools. In this context, it is not unexpected for municipalities that the products they procure improve and develop. It is also a desire for municipalities that the products keep up with the times.

As stated in the Data Protection Agency's decision of July 14, 2022, regarding Helsingør Municipality, municipalities, as part of their responsibility for public schools, have the right and obligation to organize teaching so that it meets the purposes of the public school as well as the objectives for the individual subjects. This includes, among other things, the choice of teaching and working methods, teaching materials, etc. This follows from the Folkeskole Act § 2, paragraph 1, and § 18, paragraph 1.

These provisions also imply, according to the Data Protection Agency, a certain access to process personal data when it is necessary as part of the municipalities' choice of teaching and learning materials. The majority of the information that Google receives and processes for its own purposes as part of the municipalities' use of Google Chromebooks and Workspace for Education consists of metadata about the individual student's use of the tools. This includes, among other things, information about the computer's settings, information about the use of the tools, applications, the Chrome browser, etc. Google has informed KL that the purpose of processing this information can generally be divided into (i) original purposes and (ii) derived purposes. According to Google, the original purposes are inextricably linked to Google's provision of the tools and services in question to the municipalities. All the personal data in question is initially received and processed for this purpose. In addition, the derived purposes allow Google to provide value to customers and end users regarding their use of the tools and services in question and otherwise fulfill Google's obligations as the data controller.

Regarding the derived purposes, Google has stated that this includes, among other things, (i) maintenance and improvement of the Google Workspace for Education service, Chrome OS, and the Chrome browser, (ii) measuring the performance of Chrome OS and the Chrome browser, and (iii) developing new features and services in Chrome OS and the Chrome browser.

Google has also explained how the company processes the information for these derived purposes: “When processing for these purposes, Google engineers do not use (and have no interest in using) personal data about specific end users or administrators at an individual level. Google has no interest in (for example) understanding whether and how a specific user uses a specific tool in one of its services, but Google does have an interest in understanding whether and how Google's users in general, on an overall level, use that tool. This means that Google's staff do not access or use any specific identifiers [...] relating to any end user when processing for these purposes.

For example, in the context of ChromeOS, Google has no interest in processing an end user's specific device ID or serial number in order to “measure performance,” but Google has an interest in processing large datasets of numbers of managed devices per country, regions, licenses, feature usage, and failure rates, etc., keyed to a pseudonymous ID to understand the revenue distributions and generate insights into areas where Google needs to improve and – as such – “measure performance.”

The Danish Data Protection Agency (Datatilsynet) assumes that municipalities, as part of their use of Chromebooks and Google Workspace for Education, process and disclose personal data to Google, and that this information is only processed for the original purposes and the derived purposes that KL has stated.

Furthermore, Datatilsynet assumes that the information regarding the derived purposes is only processed for the development and improvement of services that the municipalities have purchased, and that Google does not process this information – or other information such as content data – for

marketing purposes.

Based on the aforementioned amendments to the Folkeskole Act, Datatilsynet finds that it must be considered the intention of the legislator that IT should constitute an integral part of the public school system. This has been particularly expressed with the introduction of IT as a mandatory subject, where students were to gain knowledge of how IT could be used in communication and problem-solving processes, and how the use of IT affects such processes. Since then, the integration of IT has been expanded, as the mandatory subject was abolished, and IT became an integral part of all subjects in the public school system.

Datatilsynet also recognizes that there has been a development over the years in how IT systems and services are delivered. Since the 1990s, there have been significant changes in both architecture and functionality as well as delivery models. It is now much more common for providers of IT systems and services to collect and measure information about the use of the systems. This is done with the aim of utilizing the full functionality of the solutions and continuously improving the service provided, and is largely facilitated by the spread of the internet and the increasing amount of computing power available.

However, Datatilsynet notes that this development has not necessarily occurred with the necessary focus on data protection regulations and consideration for the individual citizen. Although there have been almost identical requirements for the lawful processing of personal data in Denmark since the introduction of the Data Protection Act in 2000, data controllers have not sufficiently demanded that their providers of IT systems and services ensure that the development in how IT services are delivered occurs within the framework of data protection regulations.

Overall, Datatilsynet finds that there is no basis for overriding the municipalities' assessment that, as part of the municipalities' choice of teaching and learning materials in the public school system, it is necessary to process and disclose personal data to Google as part of the use of Google Chromebooks and Workspace for Education for (i) the delivery of and (ii) the improvement of the security and reliability of the services in question, etc. ("the original purposes"), cf. Article 6, paragraph 1, letter e of the Data Protection Regulation, cf. Article 6, paragraph 3, and Section 2, paragraph 1, and Section 18, paragraph 1 of the Folkeskole Act. This includes, among other things, the processing of personal data for the purpose of delivering the services, improving the security and reliability of the services, communicating with, among others, the municipalities, and complying with legal obligations.

In this regard, Datatilsynet has particularly emphasized that the relevant purposes are inextricably linked to Google's delivery of Google Chromebooks and Workspace for Education to the municipalities, which must also be viewed in light of technological development and the evolution of how IT services and solutions are delivered today.

Datatilsynet also recognizes that the further development of the teaching and learning materials that the municipalities have decided to use in the public school system is necessary to ensure that the learning materials reflect contemporary times, so that students can learn to handle today's and future issues and challenges with contemporary and modern tools.

However, it is Datatilsynet's assessment that the municipalities cannot, within the framework of Section 2, paragraph 1, and Section 18, paragraph 1 of the Folkeskole Act, cf. Article 6, paragraph 1, letter e of the Data Protection Regulation, process and disclose personal data about school students to Google as part of the use of Google Chromebooks and Workspace for Education for (i) the maintenance and improvement of the Google Workspace for Education service, Chrome OS, and the Chrome browser, (ii) measuring the performance of Chrome OS and the Chrome browser, and (iii) developing new features and services in Chrome OS and the Chrome browser ("the derived purposes").

Datatilsynet particularly emphasizes that these derived purposes not only cover the development of the specific teaching and learning materials that the municipalities purchase but also the general development of Google's products, such as Chrome OS and the Chrome browser. These products are not exclusively provided to the municipalities but are generally offered on the market, and the further development thus benefits the market position of these products and the provider in the broadest sense.

Furthermore, Datatilsynet has emphasized that this

****Development occurs based on personal data about school students, which is collected as part of**

their use of the learning resources that the school students are obligated to use, regardless of the fact that this personal data is aggregated into general usage patterns. Although it can be said that this involves a less intrusive processing of personal data, as the information is pseudonymized and aggregated, which means that the requirements for the necessary legal basis are less stringent, and despite the flexibility that, according to the Data Protection Agency, exists in Article 6, paragraph 1, letter e of the General Data Protection Regulation (GDPR), and the "necessity requirement" stated in the provision, the Data Protection Agency does not find the necessary basis for municipalities to disclose information for the purposes mentioned in the relevant provisions of the Folkeskole Act.**

It does not appear from either the wording of the Folkeskole Act or its preparatory works that it is a necessary part of or a prerequisite for the municipalities' task fulfillment under the Folkeskole Act that municipalities disclose personal data about school students to the supplier of teaching and learning resources for the supplier's general further development of its IT products using this information. This is neither supported by a natural understanding of the law's provisions on how IT was originally to be integrated into the Folkeskole – and subsequently into individual subjects – nor by the curriculum and teaching guidelines regarding the IT subject and its purpose.

It thus does not appear that it was intended by the Parliament that the general further development of the teaching and learning resources that municipalities decide should be used in the Folkeskole could occur by disclosing personal data about school students who use the relevant teaching and learning resources to third parties, including the supplier thereof. Furthermore, it is in no way evident that the Parliament has generally foreseen the technological development that has occurred since the adoption of the relevant provisions in the Folkeskole Act in 1993.

It cannot lead to a different result that KL, in addition to the Folkeskole Act and its preparatory works, has referred to the joint public digitalization strategy 2011 to 2015 and the economic agreement between the municipalities and the government from 2012. None of these can be considered an expression of the legislator's intention regarding the tasks and obligations that municipalities have under the Folkeskole and how these should be managed.

Finally, the Data Protection Agency notes that the aforementioned considerations do not appear to be an isolated problem in relation to the Folkeskole Act. The Data Protection Agency therefore encourages the legislator to take a clear position going forward on the extent to which personal data about citizens, as part of the social contract, can or should be disclosed in cases such as the one discussed, particularly in public-private partnerships.

The Data Protection Agency therefore finds grounds to issue municipalities an order to bring their processing of personal data in the form of disclosing personal data to Google into compliance with Article 5, paragraph 1, letter a, and Article 6, paragraph 1 of the GDPR, as well as to be able to demonstrate this, cf. Article 5, paragraph 2 of the Regulation. This can occur, for example, by:

1. **The municipalities ceasing to disclose personal data to Google for the purposes mentioned, which likely requires Google to develop a technical means to block the relevant data streams,**
2. **Google refraining from processing information for these purposes, or**
3. **A sufficiently clear legal basis for the relevant processing being provided by the Parliament.**

The Data Protection Agency initially requests that the municipalities indicate how they intend to comply with the aforementioned order. The Data Protection Agency requests to receive this indication no later than March 1, 2024. The deadline for compliance with the order otherwise is August 1, 2024. The Data Protection Agency requests to receive confirmation by the same date that the order has been complied with. The order is issued pursuant to Article 58, paragraph 2, letter d of the GDPR.

According to Section 41, paragraph 2, number 4 of the Data Protection Act, anyone who fails to comply with an order issued by the Data Protection Agency pursuant to Article 58, paragraph 2, letter d of the GDPR is subject to a fine or imprisonment for up to 6 months.

5. Final Remarks

****Given the nature of the case, the Data Protection Agency has decided to inform the Parliament's Justice Committee and the Committee for Digitalization and IT, as well as the Ministry of Justice and the Ministry of Children and Education about the matter.****

****Regarding the other questions in the case, the Data Protection Agency notes that it continues to process these and expects to continue the processing in parallel with the municipalities' compliance with the aforementioned order.****

****[1] C-175/20, Valsts ieņēmumu dienests, paragraph 83.**

[2] Consolidation Act No. 1086 of August 15, 2023, on the Folkeskole.

[3] The digitalization strategy 2011 to 2015 with annex can be accessed here: <https://digst.dk/strategier/den-faellesoffentlige-digitaliseringsstrategi/tidligere-strategier/digitaliseringsstrategien-2011-til-2015/>

[4] The digitalization strategy 2011 to 2015,**

Focus Area 3 – The Folkeskole Must Challenge the Digital Generation, p. 22.

[5] Google has stated that the provision of personalized services “is a purpose under the Google Privacy Policy that applies to processing via Chrome Sync, except when the customer uses that service as part of Workspace for Education (in which case, the Google Privacy Policy, including this purpose, will not apply to that processing, and the Google Cloud Privacy Notice will apply instead). As we understand that all of the relevant Danish municipalities will use Chrome Sync as part of Workspace for Education, this processing purpose will not be applicable to their end users.”

[6] See note 6.

[7] See the definition of Services in section 15.19 of the Google Workspace for Education Terms of Service.

[8] See the definition of Chrome Services in section 15 of the Chrome Online Agreement.

[9] Google Terms of Service (dated January 5, 2022): <https://policies.google.com/terms>

[10] Google Privacy Policy (dated October 4, 2023): <https://policies.google.com/privacy>

[11] Google Privacy Policy (dated October 4, 2023): <https://policies.google.com/privacy>